



OFFICE OF THE POLICE COMMISSIONER
ONE POLICE PLAZA • ROOM 1400

September 25, 2025

Memorandum for: Deputy Commissioner, Trials

Re: **Police Officer Lori Rivera**
Tax Registry No. 962810
Brooklyn Court Section
Disciplinary Case No. 2023-28084 /
PODS Case No. C-031736

The above-named member of the service appeared before Assistant Deputy Commissioner, Trials Jeff S. Adler on August 20, 2025 and was charged with the following:

DISCIPLINARY CASE NO. 2023-28084 / C-031736

1. Said Police Officer Lori Rivera, while off-duty and assigned to the Staten Island Special Victims Squad, on or about December 5, 2022, at about 1100 hours, at a Home Depot store located at 2750 Veterans Road, Richmond County, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, in that said Police Officer wrongfully left or attempted to leave said store with merchandise for which she had not paid. (*As amended*)

A.G. 304-06, Page 1, Paragraph

PROHIBITED CONDUCT

2. Said Police Officer Lori Rivera, while off-duty and assigned to the Staten Island Special Victims Squad, on or about December 5, 2022, at about 1100 hours, at a Home Depot store located at 2750 Veterans Road, Richmond County, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, in that said Police Officer after leaving or attempting to leave said store, wrongfully possessed store merchandise for which she had not paid. (*As amended*)

A.G. 304-06, Page 1, Paragraph

PROHIBITED CONDUCT

3. Said Police Officer Lori Rivera, while assigned to the Staten Island Special Victims Squad, on or about December 5, 2022, having been stopped and accused of stealing or attempting to steal merchandise from a Home Depot store located at 2750 Veterans Road, Richmond County, wrongfully failed to notify the Internal Affairs Bureau, or to remain at the scene and request the response of the Patrol Supervisor, precinct of occurrence, as required.

P.G. 207-21, Pages 1 and 2

**ALLEGATIONS OF MISCONDUCT
AGAINST MEMBERS OF THE
SERVICE**

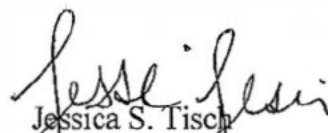
**P.G. 212-32, Page 1, Paragraphs 1 and 2 OFF DUTY INCIDENTS INVOLVING
MEMBERS OF THE SERVICE**

In a Memorandum dated September 10, 2025, Assistant Deputy Commissioner, Trials Adler found Police Officer Rivera Guilty of all Specifications, after said member of the service entered a plea of Guilty to all Specifications in Disciplinary Case No. 2023-28084 (PODS Case No. C-031736). Having read the Memorandum and analyzed the facts of this matter, I approve of the findings, and the penalty recommendation that Police Officer Rivera be separated from the Department by way of vested interest retirement.

Thus, an *immediate* post-trial settlement agreement will be implemented with Police Officer Rivera in which she shall forfeit thirty (30) suspension days to be served, forfeit thirty (30) suspension days already served, forfeit all time and leave balances, be placed on one (1) year dismissal probation, and immediately file for vested interest retirement.

Such vested interest retirement shall also include Police Officer Rivera's written agreement to not initiate administrative applications or judicial proceedings against the New York City Police Department to seek reinstatement or return to the Department.

If Police Officer Rivera does not agree to the terms of this vested interest retirement agreement as noted, this Office is to be notified without delay. This agreement is to be implemented **IMMEDIATELY**.


Jessica S. Tisch
Police Commissioner



POLICE DEPARTMENT

September 10, 2025

-----X
In the Matter of the Charges and Specifications :
- against - :
Police Officer Lori Rivera :
Tax Registry No. 962810 :
Brooklyn Court Section :
-----X

Case No.
C-031736

At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Jeff S. Adler
Assistant Deputy Commissioner Trials

APPEARANCES:

For the Department: David Green, Esq.
Department Advocate's Office
One Police Plaza, Room 402
New York, NY 10038

For the Respondent: Peter Brill, Esq.
Brill Legal Group, P.C.
176 Lexington Avenue, Suite O
New York, NY 10016

To:

HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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CHARGES AND SPECIFICATIONS

1. Said Police Officer Lori Rivera, while off duty and assigned to the Staten Island Special Victims Squad, on or about December 5, 2022, at about 1100 hours, at a Home Depot store located at 2750 Veterans Road, Richmond County, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, in that said Police Officer wrongfully left or attempted to leave said store with merchandise for which she had not paid. *(As amended)*

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

2. Said Police Officer Lori Rivera, while off duty and assigned to the Staten Island Special Victims Squad, on or about December 5, 2022, at about 1100 hours, at a Home Depot store located at 2750 Veterans Road, Richmond County, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, in that said Police Officer after leaving or attempting to leave said store, wrongfully possessed store merchandise for which she had not paid. *(As amended)*

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

3. Said Police Officer Lori Rivera, while assigned to the Staten Island Special Victims Squad, on or about December 5, 2022, having been stopped and accused of stealing or attempting to steal merchandise from a Home Depot store located at 2750 Veterans Road, Richmond County, wrongfully failed to notify the Internal Affairs Bureau, or to remain at the scene and request the response of the Patrol Supervisor, precinct of occurrence, as required.

P.G. 207-21, Pages 1 and 2

ALLEGATIONS OF
MISCONDUCT AGAINST
MEMBERS OF THE
SERVICE

P.G. 212-32, Page 1, Paragraphs 1 and 2

OFF DUTY INCIDENTS
INVOLVING MEMBERS
OF THE SERVICE

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on August 20, 2025.

Respondent, through her counsel, entered a plea of Guilty to the charged misconduct, and

testified in mitigation of the penalty. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all the evidence in this matter, I recommend a penalty of Forced Separation.

SUMMARY OF EVIDENCE IN MITIGATION

On the morning of December 5, 2022, Respondent, who was off-duty at the time, entered a Home Depot in Richmond County. She placed five items inside a shopping cart, and proceeded to a self-checkout machine. As will be discussed below, video footage from a store security camera captured Respondent leaving the register and heading to the exit even though she had failed to pay for one of the items in her cart, a \$15 box of Christmas lights.

Two weeks prior to trial, the Department Advocate amended the charges and specifications in this matter with respect to the first two counts, which deal with Respondent having attempted to leave the store with the item for which she had not paid. Unlike the typical shoplifting case, the amended charges here do not allege that Respondent acted with an intent to steal. Instead, they charge her with wrongfully attempting to leave the store without paying for merchandise. At the outset of the trial, both sides confirmed their belief that based on the totality of the circumstances in this matter, including Respondent's mental state at the time, the case should proceed under the theory that Respondent acted negligently when she attempted to leave the store without paying for the box of Christmas lights. Respondent then pleaded guilty to the charges, and the case moved forward as a mitigation hearing. (Tr. 3-11)

A store security camera captured what transpired at the register. (Dept. Ex. 1) At the 0:32 mark of the security footage, Respondent can be seen using the handheld barcode scanner to individually scan the items in her cart. Respondent scans two boxes from the upper section of her cart, and appears to check the screen to confirm the items have been scanned. There is,

however, an additional item, underneath the box on the left, which she does not scan.

Respondent then lifts and scans a cylindrical canister in the cart. There also is a large box in the main section of the shopping cart that she initially does not scan. Respondent proceeds to pay for the scanned items, and begins to walk away from the register, when she is stopped by a store employee, who reviews Respondent's receipt. They have a brief conversation, during which the employee points to the large box inside the cart and hands it back to Respondent, who scans and pays for it. She again fails to scan or pay for the item that is beneath the box in the upper left section of her cart, before walking away from the register. The store employee retrieves the receipt and begins to walk after Respondent, but instead hands the receipt to a plainclothes Loss Prevention Officer ("LPO"), who follows in Respondent's direction. Just over a minute later, at the 4:39 mark, Respondent is seen returning to the register area, accompanied by the LPO, who escorts Respondent further inside the store.

Respondent was the sole witness to testify at this mitigation hearing. Before describing what occurred inside Home Depot, Respondent provided extensive background testimony regarding personal matters in her life. She then explained how the issues with which she was grappling affected her actions on the day of the incident.

Respondent, who lives with her five children, along with her elderly mother for whom she cares, testified that in 2020 she and her husband were divorced. In the aftermath of that divorce, Respondent, newly single, began to go out more frequently, determined to meet new people and hoping to feel better about herself again. As part of that socializing, she began to drink alcohol more regularly, and by 2022 she was getting drunk almost every day and could not stop. [REDACTED]

[REDACTED]. (See Resp. Ex. D, medical records.) The heavy drinking continued, and on one

occasion in November 2022, while she was in the park with her children, she tripped and broke her nose after she had been drinking. (*See* Resp. Ex. C, hospital records.) Still, she remained in denial about her drinking problem. (Tr. 43-46)

According to Respondent, by December 2022 she “felt empty inside” and thought she needed guidance. She paid out-of-pocket for two private counseling sessions with a Licensed Mental Health Counselor, who diagnosed Respondent as suffering from depression. (*See* Resp. Ex. E, letter from therapist.) Respondent did not continue seeing her, because she was afraid that if she billed the visits through her insurance the Department would find out. Similarly, she decided not to take medication for her depression because she was worried that the job would learn about her condition if she were to be drug-tested. Respondent claimed that she did, however, try calling the Department’s Police Organization Providing Peer Assistance, but no one answered the phone, and she also received no response when she tried calling the Employee Assistance Unit for help. Respondent testified that she continued drinking because it “numbed [her] emotions.” (Tr. 48-51)

It was in this context that the events of December 5, 2022 unfolded. Respondent testified that her daughter wanted Christmas lights to decorate their house for the holiday, so Respondent “had to get [herself] up out of bed” to go to Home Depot. She was drinking mornings and nights at the time, and may have been intoxicated when she went to the store. Respondent described herself as like a “zombie” as she was “slogging [her] way through the store.” She first placed the box of Christmas lights into her cart, and then added a few additional items. According to Respondent, as she was shopping she received a call from an ACS caseworker, who informed her that they had received an anonymous call stating that Respondent had been drinking and

cursing in front of her children. The ACS worker told her that they would be conducting a home visit within the hour.¹ (Tr. 52-54, 59, 79-80)

Respondent testified that after the call her mind went blank, and her sole focus was to leave the store and get home for her children in time for the ACS visit. She went to the register, scanned the items without looking carefully, and started to leave the location. A female store employee stopped her and said she had neglected to scan an item, the big box in her cart. Respondent testified that she thought she had scanned it, but she was still distracted from the ACS call. With the help of the worker, Respondent scanned and paid for the item, and rushed away with the goal of returning home. However, she was stopped again, this time by the LPO, who informed her that she had failed to scan the box of Christmas lights. Respondent was “baffled,” because she thought she had scanned all of the items in her cart. (Tr. 54-56, 83-84)

The LPO escorted Respondent back inside to an office. According to Respondent, the LPO saw her NYPD identification, and told her that he was not going to call the police regarding the incident. Respondent signed two forms, one where she admitted to knowingly stealing the Christmas lights (Dept. Ex. 2) and one where she agreed not to come back to any Home Depot store for three years (Dept. Ex. 3), though she claimed she did not read the forms before signing them. Respondent testified that she “felt like [her] body was there, but [her] mind was not,” and her only concern was to get home to her children. She acknowledged that she did not notify IAB or her command about the incident. She made it home in time for the ACS visit, where the matter involving her children was closed as “unsubstantiated.” Several months later, after the District Attorney’s Office became aware of the Home Depot incident, Respondent was arrested

¹ On cross-examination, Respondent acknowledged that the first time she said anything about the call from ACS was during this trial. She explained that the reason she did not mention it during her official Department interview was because she was afraid there would be negative job implications if the job learned about the ACS case. (Tr. 79-80)

for shoplifting; she went to court and the charges were adjourned in contemplation of dismissal. (Tr. 56-60, 62, 82)

In the months following this incident, Respondent became pregnant and had another child. She hoped the new baby would help her heal, but she still felt sad, depressed, and anxious, and continued drinking. Respondent testified that she was reluctant to seek help because her children came first, and she was concerned that there would be no one to take care of them if she were to enter a treatment program. In 2023 she did start seeing Dr. Gregory Mack, a Department psychologist, for her depression, but she initially made no mention of her heavy drinking. By 2024, things were getting worse, and she started lashing out at her children. Respondent testified that the final straw was when she yelled at her elderly mother during an argument. She finally realized that she had a problem, and in December 2024 she reached out to the Department for help. They initially gave her an appointment for January, but after hanging up the phone Respondent decided, at last, to prioritize her own needs. She called back, was given an immediate appointment, and began a six-month outpatient program for alcohol abuse, which she completed, while also working with therapists. She has continued to meet with Dr. Mack, and is currently on her ninth step of Alcohol Anonymous's 12-step program. (*See* Resp. Exs. G & H, clinic and counseling records.) Respondent testified that she has been sober for eight months. She is grateful to those who have helped her and is proud of herself. Respondent insisted that she is a "good human being" who cares about people, and wants to remain a police officer. She would like to help guide other MOS who are dealing with substance abuse problems. (Tr. 64-73, 75-77, 85-86)

In conjunction with her testimony, Respondent offered into evidence several exhibits that provide relevant background information. In addition to what has already been referenced

above, Respondent's Exhibit A includes a letter to then-Police Commissioner Sewell from a woman praising Respondent's role in helping rescue the woman's kidnapped aunt. Also part of that exhibit are copies of flyers showing Respondent's active role in community events in 2022. Respondent's clinic and counseling records (Resp. Exs. G & H) include several reports from Dr. Gregory Mack, the Department's Deputy Director, Psychological Evaluation Center. The reports show Respondent's progression, from initially denying the need for counseling to eventually enrolling in an alcohol abuse program. [REDACTED]

[REDACTED]

[REDACTED]. There also are multiple reports from Renee Stevenson, an alcohol and substance abuse counselor with the Medical Division. These reports summarize how Respondent reached out for help with her alcohol abuse on December 11, 2024, and was subsequently enrolled in an out-patient program with Bridge Back to Life. An update dated February 11, 2025 attests to Respondent's "good progress" with her treatment.

PENALTY

In order to determine an appropriate penalty, this Tribunal, guided by the Department's Disciplinary System Penalty Guidelines, considered all relevant facts and circumstances, including potential aggravating and mitigating factors established in the record. Respondent's employment history also was examined. *See* 38 RCNY § 15-07. Information from her personnel record that was considered in making this penalty recommendation is contained in an attached memorandum.

Respondent, who was appointed to the Department on October 11, 2016, has pleaded guilty to all three charges, the most serious of which is for wrongfully attempting to leave Home

Depot with merchandise for which she had not paid. In a typical shoplifting case, where the actions of the accused constitute the crime of Petit Larceny, the Disciplinary Guidelines provide for a presumptive penalty of Termination, with a mitigated penalty of Forced Separation.

However, as noted above, both parties have taken the position that when the totality of the circumstances in this case are considered, the evidence did not support a finding that Respondent acted with an intent to steal. Rather, Respondent acted negligently when she attempted to leave the store without paying for the box of Christmas lights. As such, the Petit Larceny section of the Matrix does not strictly apply here, though, as noted by the Department Advocate, that penalty section still most closely mirrors the misconduct in this case.

Counsel for Respondent asks for a penalty that will allow his client to remain with the Department, while also noting that even if this were an intentional theft, the mitigated penalty of Forced Separation, as opposed to Termination, would be appropriate under the circumstances. The Department Advocate's Office acknowledges that there are mitigating factors that should be considered here, but still recommends that Respondent be separated from the Department.

In determining an appropriate penalty in this matter, it is important to recognize the seriousness of the misconduct, while also taking into account the context in which Respondent's actions occurred. On the one hand, this Tribunal is mindful that Respondent, who has no formal disciplinary record, had been dealing with a number of challenging personal issues, including alcohol abuse and depression, at the time of this incident. At trial, it was evident how hard it was for Respondent to testify, in detail, about the various issues with which she has been grappling. She was very emotional throughout her testimony, frequently in tears as she described her experiences. It was encouraging to learn how Respondent eventually found a way to seek

assistance for her problems, and to hear her explain how she is doing much better in her ongoing struggles since getting the help that she needed.

Nevertheless, it is deeply troubling that on December 5, 2022, Respondent wrongfully attempted to leave Home Depot without paying for all the items in her shopping cart, and there must be appropriate accountability. As stated in the Disciplinary Guidelines, members of the service are required to maintain the standards established by the Department for their conduct, whether on duty or off duty. Police officers are held to a higher standard of ethics and integrity.

As seen in the video footage, Respondent made no effort to pay for the box of Christmas lights that were in the upper section of her cart. Like any shopper, Respondent had a responsibility to pay for the items in her cart before leaving the location. By failing to do so, she compromised the public trust that is so vital in those who serve as uniformed members of the Department, and undermined confidence in her ability to continue to serve as a police officer with the NYPD.

On balance, a penalty that provides for Respondent's separation from the Department, while allowing her to retire, is reasonable and appropriate to address the misconduct in this particular case. Taking into account the totality of the facts and issues in this matter, I recommend that the Police Commissioner direct an immediate post-trial settlement negotiation, allowing Respondent to file for vested-interest retirement, along with whatever additional conditions the Police Commissioner deems appropriate.

APPROVED

SEP 25 2025
Jessie Tisch
JESSICA S. TISCH
POLICE COMMISSIONER

Respectfully submitted,

Jeff S. Adler
Jeff S. Adler
Assistant Deputy Commissioner Trials



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials

To: Police Commissioner

Subject: SUMMARY OF EMPLOYMENT RECORD
POLICE OFFICER LORI RIVERA
TAX REGISTRY NO. 962810
DISCIPLINARY CASE NO. C-031736

Respondent was appointed to the Department on October 11, 2016. On her three most recent annual performance evaluations, she was rated “Exceeds Expectations” for 2022, 2023, and 2024. She has been awarded three medals for Excellent Police Duty.

In connection with this matter, Respondent was suspended without pay from March 9, 2023 through April 9, 2023. She also was placed on Level 1 Monitoring in December 2022, which was upgraded to Level 2 in April 2023 after charges and specifications were filed. Monitoring remains ongoing.

Respondent has no formal disciplinary history.

For your consideration.

Jeff S. Adler
Assistant Deputy Commissioner Trials